

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Erin Sweeney	Team: Squad #08	CCRB Case #: 201504296	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 01/15/2015 12:00 AM, Wednesday, 05/20/2015 9:30 PM	Location of Incident: Melrose Street between Evergreen Avenue and Bushwick Avenue	18 Mo. SOL 11/20/2016	Precinct: 83		
Date/Time CV Reported Thu, 05/28/2015 10:43 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 05/28/2015 10:43 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Marvin Luis	16926	950787	083 PCT
2. SGT Pedro Bobe	00510	927936	083 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Marvin Luis	Abuse: PO Marvin Luis stopped the car in which § 87(2)(b) was an occupant.	A . Unsubstantiated
B . SGT Pedro Bobe	Abuse: Sgt. Pedro Bobe stopped the car in which § 87(2)(b) was an occupant.	B . Unsubstantiated
C . SGT Pedro Bobe	Abuse: Sgt. Pedro Bobe searched the car in which § 87(2)(b) was an occupant.	C . Unsubstantiated
D . SGT Pedro Bobe	Abuse: Sgt. Pedro Bobe damaged § 87(2)(b)'s property.	D . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On May 20, 2015, at approximately 9:30 p.m., § 87(2)(b) (formerly known as § 87(2)(b)) was driving to the shrine of his cousin, § 87(2)(b), who had been murdered on § 87(2)(b). At Melrose Street between Evergreen Avenue and Bushwick Avenue in Brooklyn, § 87(2)(b)'s vehicle was stopped by PO Marvin Luis and Sgt. Pedro Bobe of the 83rd Precinct (**Allegations A and B**). Approximately four months before this incident, PO Luis was present when § 87(2)(b) and § 87(2)(b) were arrested by PO Andre Perez of the 83rd Precinct (Board Review 1). § 87(2)(b) alleged that Sgt. Bobe searched his vehicle and damaged his glove compartment (**Allegations C and D**). § 87(2)(b) was released without a summons.

Mediation, Civil and Criminal Histories

- On June 3, 2015, § 87(2)(b) was presented with mediation in person, and he rejected it § 87(2)(b) (Board Review 2).
- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)
§ 87(2)(b)
- This report has been submitted pending a FOIL request filed on August 10, 2015, for any Notice of Claim filed in regard to this incident (Board Review 4).

Civilian and Officer CCRB Histories

- This § 87(2)(b)'s first CCRB complaint (Board Review 5 and 6).
- Sgt. Bobe has been a member of service for 14 years and has 11 total allegations, including the five from this case (Board Review 7). In case 200713590, a stop allegation was substantiated, charges were recommended by the Board, and the NYPD chose not to take disciplinary action. In case 200700538, a vehicle search allegation was exonerated. § 87(2)(g), § 87(4-b)
§ 87(2)(g)
- PO Luis has been a member of service for four years and has seven total allegations, including the three from this case (Board Review 8). None of the previous allegations have been substantiated, § 87(2)(g).

Findings and Recommendations

Allegation A—Abuse of Authority: PO Marvin Luis stopped the car in which § 87(2)(b) was an occupant.

Allegation B—Abuse of Authority: Sgt. Pedro Bobe stopped the car in which § 87(2)(b) was an occupant.

Allegation C—Abuse of Authority: Sgt. Pedro Bobe searched the car in which § 87(2)(b) was an occupant.

Allegation D—Abuse of Authority: Sgt. Pedro Bobe damaged § 87(2)(b)'s property.

§ 87(2)(b) was driving to the shrine of his cousin, § 87(2)(b), who had been murdered § 87(2)(b) (Board Review 2). In January in the same neighborhood, § 87(2)(b) and § 87(2)(b) were together when they were arrested by PO Luis and other members of the 83rd Precinct Anti-Crime team. On this date, approximately three blocks away from the shrine,

§ 87(2)(b) turned left onto Melrose Street from Evergreen Avenue. He signaled when he made the turn. After he turned, officers in an unmarked black Ford Fusion pulled him over. § 87(2)(b) stated that an officer he had never seen before, identified as Sgt. Bobe, approached his window. An officer identified as PO Luis approached the passenger window and said, “Hey, remember me?” § 87(2)(b) told him that he did remember him from the January arrest. § 87(2)(b) went to hand him his license, registration, and insurance, and Sgt. Bobe said, “I won’t be needing that—step out of the vehicle.” § 87(2)(b) refused to exit the vehicle, and thought that the officers had to ask him approximately six times to do so. § 87(2)(b) told them that he was going to pay his respects at the shrine, and the officers said that they understood. Finally, § 87(2)(b) surrendered, exited the vehicle, and said, “I’ve got nothing to hide.” No officer ever told him they were going to search his vehicle, and he never consented to a vehicle search. § 87(2)(b) was taken to the rear of his vehicle with PO Luis. Sgt. Bobe searched his car for approximately seven minutes. He opened at least the two front doors and the left rear door. He searched in the back seat. When Sgt. Bobe opened the glove compartment, he “yanked” on it, causing it to become looser. The clip that the gear shifted was settled inside of was also askew. The joint that the glove compartment uses to lock is loose. The screw that held the joint has shifted. After the stop, which § 87(2)(b) estimated lasted approximately twelve minutes, he drove to the shrine. Approximately three minutes after he arrived at the shrine, § 87(2)(b) saw the officers’ vehicle drive by the shrine, and the officers stared at him.

PO Luis stated that he saw a vehicle with dark tints on the back and side windows of the vehicle (Board Review 9). PO Luis did not recognize the vehicle as § 87(2)(b)s, and only noticed the tints. § 87(2)(b) failed to signal when he turned left onto Melrose Street from Evergreen Avenue. Nothing besides the failure to signal led PO Luis to stopping him. During the stop, § 87(2)(b) told the officers that he was going to § 87(2)(b) shrine, and PO Luis offered his condolences. At that point, PO Luis recognized § 87(2)(b) as the person he had stopped with § 87(2)(b) in January. PO Luis asked him if he was staying out of trouble, and § 87(2)(b) said, “I’m staying out of trouble—I never get in trouble.” PO Luis did not recall saying “You got in trouble that night,” or anything similar. PO Luis did not recall asking § 87(2)(b) to step out of the vehicle, and § 87(2)(b) never exited the vehicle. PO Luis never asked to search his vehicle, but stated that he might have asked, “You don’t have anything in the car that’s illegal, right?” PO Luis explained that he often asks this to see if people become nervous when they respond, but he did not have an independent recollection of saying this to § 87(2)(b). § 87(2)(b) told PO Luis that he “did not do anything or have anything.” Sgt. Bobe was near the front passenger window and never said anything to § 87(2)(b). PO Luis never opened any of the doors, and he never saw Sgt. Bobe open any of the doors. PO Luis never searched his vehicle, and he never saw Sgt. Bobe do this. PO Luis never opened or damaged the glove compartment, and he never saw Sgt. Bobe do these things. PO Luis never noticed any damage to the interior of the vehicle. PO Luis used discretion and decided not to issue § 87(2)(b) a summons for failing to signal. PO Luis acknowledged that he and Sgt. Bobe drove to the shrine after the stop because they wanted to check on the two Impact officers who were stationed there. PO Luis wanted to make sure that there was not a large crowd at the shrine, as there had been one the previous evening. They had driven past the shrine several times that evening to check on the crowd. He did not use his radio to communicate with the officers at the shrine because the shrine was only one block away from where they had stopped § 87(2)(b). PO Luis first drove past the housing project in the neighborhood and then went to the shrine. At the shrine, he saw § 87(2)(b)s vehicle driving away from the shrine. PO Luis had no further

interaction with § 87(2)(b) after the stop. After the incident, PO Luis told Sgt. Bobe who § 87(2)(b) was, as Sgt. Bobe did not know § 87(2)(b) but he was familiar with § 87(2)(b) § 87(2)(b) murder.

Sgt. Bobe stated that he did not notice anything about the vehicle when he first saw it, and PO Luis did not say anything about the vehicle (Board Review 10). PO Luis gave no indication that he recognized the vehicle or its driver. The vehicle turned left onto Melrose Street without signaling, and the officers pulled him over. There was no other reason for stopping him. Sgt. Bobe had never interacted with § 87(2)(b) before this incident. During the stop, § 87(2)(b) said that his cousin was killed and he was on his way to the shrine. Sgt. Bobe realized that he was talking about § 87(2)(b) because the shrine was approximately one block away. Sgt. Bobe was familiar with § 87(2)(b) because he was “a huge drug dealer” and his death was a “particularly violent homicide.” Sgt. Bobe said, “I’m sorry to hear about the death of your cousin.” He never made any comments about § 87(2)(b) death, and neither did PO Luis. Sgt. Bobe stated that § 87(2)(b) never was asked to step out of the vehicle, and he never stepped out of the vehicle for any reason. § 87(2)(b) was never asked if the officers could search the vehicle, and § 87(2)(b) never told the officers that they could search the vehicle. Sgt. Bobe never searched § 87(2)(b)s vehicle, and PO Luis never entered the vehicle for any reason. Sgt. Bobe did not notice any damage to the vehicle, and § 87(2)(b) never said anything about damage to the vehicle. Sgt. Bobe never opened the glove compartment or damaged the glove compartment, and he never saw PO Luis do these things. § 87(2)(b) was only warned and admonished because he was on his way to his cousin’s shrine. Sgt. Bobe said that as they were walking away from § 87(2)(b)s vehicle, PO Luis told Sgt. Bobe that § 87(2)(b) was arrested by the Anti-Crime team in January for § 87(2)(b), and PO Luis discovered approximately \$107,000 in cash in his vehicle. Sgt. Bobe could not recall where he went after the stop, if he drove by the shrine, or if he saw § 87(2)(b) at the shrine.

§ 87(2)(b) denied committing any violations. He believed that the stop was somehow related to his previous arrest, which involved PO Luis and other Anti-Crime officers. PO Luis and Sgt. Bobe denied recognizing § 87(2)(b)s vehicle or § 87(2)(b) before they stopped him, and said that his failure to signal was the only reason they stopped him. Both officers stated that they connected § 87(2)(b) to § 87(2)(b) when § 87(2)(b) told them that he was on the way to the shrine. Sgt. Bobe claimed that he did not know anything about § 87(2)(b) until PO Luis told him about his previous arrest after the stop.

§ 87(2)(g)

It is therefore recommended that **Allegations A-D** be **Unsubstantiated**.

§ 87(2)(g), § 87(4-b)

[REDACTED]

Pod: 8

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date